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MICHAEL WOODMAN, Executive Director
AARON HOYT, Deputy Executive Director

Grass Valley • Nevada City

Nevada County • Truckee

File: 1030.3.2.2

MEMORANDUM

TO: Nevada County Transportation Commission

FROM: Michael Woodman, Executive Director 

SUBJECT: Western Nevada County Regional Transportation Mitigation Fee Program
Annual Report for FY 2022/23

DATE: November 8, 2023

RECOMMENDATION: Approve the Western Nevada County Regional Transportation Mitigation Fee Program Annual Report for FY 2022/23.

BACKGROUND: The purpose of the Regional Transportation Mitigation Fee (RTMF) Program is to help finance needed improvements to the regional network of streets and roads to mitigate the impact of increased traffic that will result from new development in western Nevada County. The fee program was initiated through coordination between NCTC and the Cities of Grass Valley, Nevada City, and Nevada County as a way to collectively address transportation impacts associated with forecasted regional growth. The fee program was originally adopted on January 17, 2001 by Grass Valley, Nevada City, and Nevada County and is administered by the Nevada County Transportation Commission (NCTC) through agreements with those agencies. The program provides a reliable and consistent mechanism for all new development to pay its fair share towards the cost of construction of regional transportation improvements, which did not exist prior to its adoption and each development bore the full burden of improving the regional transportation system.

This RTMF Annual Report for FY 2022/23 is prepared to assist Grass Valley, Nevada City, and Nevada County in complying with the provisions of Government Code Section 66006, which requires each local agency that adopts mitigation fees to provide an annual report and to schedule a public meeting regarding that report. The Annual Report includes the following:

- The geographic area covered by the RTMF;
- The regional infrastructure projects included in the RTMF and new development's proportional share of the costs;
- The adopted fee schedule;
- A financial summary of the RTMF

This Annual report is based on the 2016 RTMF Nexus Study adopted in 2016 that established a mitigation fee schedule for regional transportation improvements in western Nevada County. Future

RTMF Annual Reports will be based on the 2023 RTMF Nexus Study adopted July 19, 2023. Exhibit 1 shows the Regional Transportation Mitigation Fee area. The fees collected will provide the needed revenue to fund construction of the improvements shown in the RTMF Capital Improvement Program (see Exhibit 2). Exhibit 2 also fulfills the requirements of Section 66006 (b) (1) (F) which requires a local agency to identify the approximate date by which construction of a public improvement will commence.

Exhibit 3 presents a Mitigation Fee Schedule and fulfills the requirements of Section 66006 (b) (1) (B), “The amount of the fee.” To document compliance with Section 66006 (b) (1) (G) and (H), there have been no inter-fund transfers or loans made from the RTMF Fund, nor have there been any refunds made pursuant to subdivision (e) of Section 66001 nor allocations pursuant to subdivision (f) of Section 66001.

Exhibit 4, which presents “The beginning and ending balance of the account or fund” fulfills the requirements of Section 66006 (b) (1) (C), Section 66006 (b) (1) (D) “The amount of the fees collected and the interest earned” and Section (b) (1) (E) “an identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.”

attachments

EXHIBIT 1

Regional Transportation Mitigation Fee (RTMF) Program Boundary

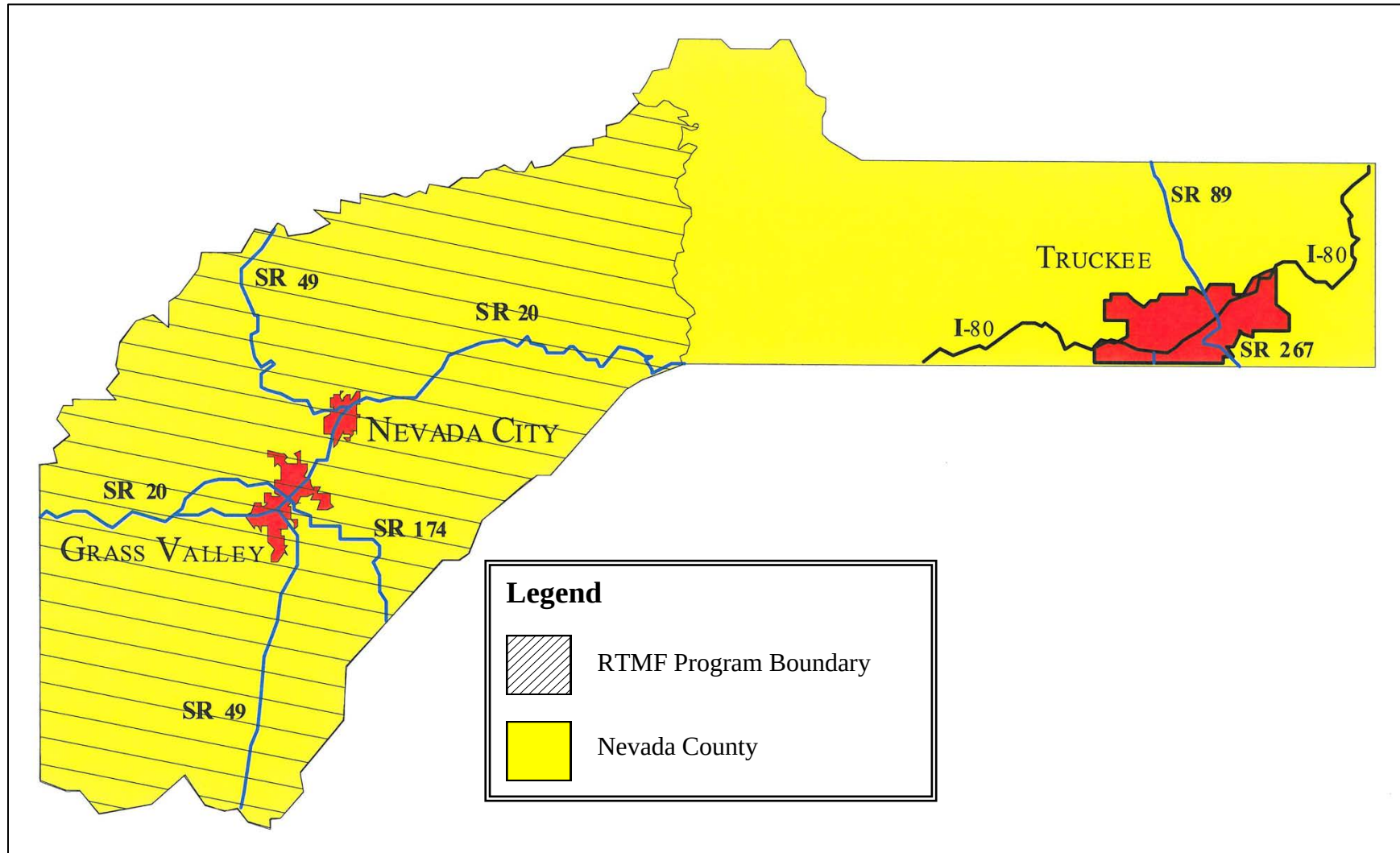


Exhibit 2
Regional Transportation Mitigation Fee (RTMF) Capital Improvement Program

Project ID	Facility	Segment	Updated Cost Estimate	% of Need Attributable to New Development	Costs Attributable to New Development	Funding Priority	Project Year
1	SR-49 Interchange	Dorsey Drive	\$24,000,000	33%	\$7,991,555	2	2025/26
2	SR-49	S/o La Barr Meadows Rd (SB)	\$33,417,273	12%	\$4,005,587	4	2030/31
3	SR-49	South of Alta Sierra Dr (SB)	\$123,414,693	3%	\$3,862,597	5	2034/35
4	SR-49 NB & SB Ramps	@ McKnight Way	\$8,000,000	64%	\$5,089,431	1	2025/26
5	SR 20 EB Ramps	@ McCourtney Rd	\$1,556,515	32%	\$500,432		2035/36
6	SR 20/49 NB Ramps	@ Idaho Maryland Rd	\$1,380,043	100%	\$1,380,043		2036/37
7	SR 20/49 SB Ramps	@ Ridge Rd/Gold Flat Rd	\$670,000	52%	\$350,227		2035/36
8	SR 20/SR 49	@ Uren St	\$1,088,655	21%	\$233,760		2035/36
9	E.Main St	@ Bennett St/Richardson St	\$1,500,000	100%	\$1,500,000	6	2018/19
10	South Auburn St	@ SR-20/49 NB Ramps	\$1,033,842	100%	\$1,033,842	3	2026/27
11	SR-49	@ Coyote St	\$350,000	34%	\$119,288		2036/37
12	Admin Costs and 5-year reviews		\$425,560	100%	\$425,560		2036/37
Total			\$196,836,581		\$26,492,323		

EXHIBIT 3

Regional Transportation Mitigation Fee (RTMF Schedule)

Land Use Category	Fee Per Trip ¹
Residential	\$485.40
Non-Residential	\$85.72
Note: 1. RTMF Inflationary Adjustment Resolution 22-05, March 16, 2022.	

The 2016 RTMF Administrative Plan allows for an annual inflationary adjustment based on the average of the San Francisco Construction Cost Index as reported in the Engineering News Record 20-City Construction Cost Index for the 12-month period ending December of the prior year.

EXHIBIT 4
REGIONAL TRANSPORTATION MITIGATION FEE (RTMF) ANNUAL REPORT
FY 2022/23

Cash 7/1/22	\$2,041,664.91
Additions FY 21/22	\$551,851.79
Deductions FY 21/22	\$268,830.84
Cash 6/30/23	\$2,324,685.86

RTMF REVENUES, INTEREST, AND EXPENDITURES
FROM 2000/01-2022/23

JURISDICTION	RTMF COLLECTED FY 00/01-21/22	RTMF COLLECTED FY 22/23	TOTAL RTMF COLLECTED/EXPENDED
City of Grass Valley	\$2,571,833.36	\$114,832.66	\$2,686,666.02
City of Nevada City	\$200,561.32	\$2,869.95	\$203,431.27
County of Nevada	\$5,446,199.27	\$510,200.28	\$5,956,399.55
Total	\$8,218,593.95	\$627,902.89	\$8,846,496.84
Interest	\$235,972.25	\$44,588.21	\$280,560.46
Expenditures	\$6,466,436.38	\$344,779.64	\$6,811,216.02
TOTAL	\$1,988,129.82	\$327,711.46	\$2,315,841.28

RTMF ALLOCATIONS
2022/23

DATE/RESOLUTION	ORIGINAL ALLOCATION	REMAINING ALLOCATION AS OF 7/1/2022	PROJECT	EXPENDED DURING FY 2022/23	BALANCE OF ALLOCATION AS OF 6/30/23	RTMF % of Total Cost
5/18/22 Reso 22-16	\$5,000.00	\$5,000.00	NCTC RTMF Administration	\$4,891.94	\$108.06	100.00%
9/21/22 Reso 22-34	\$136,715.84	\$99,937.42	NCTC RTMF Update WE 2.2.1 Consultant	\$99,934.93	\$2.49	100.00%
9/21/22 Reso 22-34	\$75,632.82	\$47,424.56	NCTC RTMF Update WE 2.2.1 Staff	\$38,205.42	\$9,219.14	100.00%
7/19/17 Reso 17-28	\$4,386,462.84	\$3,126,201.30	Grass Valley Dorsey Drive Interchange	\$159,471.19	\$2,966,730.11	33.00%
7/19/17 Reso 17-29	\$1,500,000.00	\$42,276.16	Grass Valley East Main Street/Bennett Street Intersection	\$42,276.16	\$0.00	100.00%
TOTAL	\$6,103,811.50	\$3,320,839.44		\$344,779.64	\$2,976,059.80	